Office of Research Assurance

Human Subject Research Protections Standard Operating Procedures (SOP)

SOP- 440: NASA IRB Review - Continuing Review

Number	Effective Date	Version Number	Previous Versions
440	13-Sep-2023	v.3	v.2

Purpose

SOP-440 defines the criteria and processes related to continuing review of human subjects research. Continuing review allows the NASA IRB to conduct thorough and meaningful evaluation of ongoing human subjects research in compliance with federal regulations and NASA IRB policies and procedures.

NASA is an official signatory of the Common Rule codified at 14 CFR part 1230 and applies the Food and Drug Administration (FDA) regulations 21 CFR parts 50, 56, 312, 812 (as applicable) when projects involve activities regulated by the FDA.

Federal regulations 14 CFR 1230.109(e) and 21 CFR 56.109(f) require that the NASA IRB periodically review research activities at intervals appropriate to the degree of risk, but not less than once per year*, except as described in §1230.109(f).

*Note: Research reviewed and approved prior to January 21, 2019 follows the continuing review schedule (expiration date) indicated on the last approval. The NASA IRB transitioned applicable studies to the new continuing review schedule, per the Revised Common Rule, and issued a determination letter indicating the transition along with any additional requirements.

Policy

1. The 2018 Revised Common Rule requirements for continuing review apply to the following:
   a) Research initially approved by the NASA IRB on or after January 21, 2019;
   b) Research for which continuing review is waived pursuant to expedited review categories in accordance with 14 CFR 1230.110 and SOP-430 : Expedited Review on or after January 21, 2019;

   Note: Continuing review is not required for minimal risk research approved by expedited review procedures on or after January 21, 2019, unless the expedited reviewer determines otherwise.

2. The NASA IRB Office has the discretion to make the final determination on when a CR will go to full committee, expedited review, or if CR can be waived.
3. The NASA IRB shall conduct continuing review of research requiring review at intervals appropriate to the degree of risk, not less than once per year, except as described below.
4. Continuing review is conducted by either expedited review procedures or by full committee review

    a) Expedited Review

        i) Research that meets the criteria for expedited continuing review are specified in SOP - 430: NASA IRB Review Level - Expedited Review.

        ii) An expedited continuing review may be performed by the NASA IRB Chair/designee. The expedited reviewer should, whenever possible and not conflicted, be the NASA Center representative [e.g., Ames, Langley, Kennedy].

        iii) Category 9: Continuing review of research, not conducted under an investigational new drug application or investigational device exemption where categories two (2) through eight (8) do not apply but the IRB has determined and documented at a convened meeting that the research involves no greater than minimal risk and no additional risks have been identified.

    b) Full Committee Review:

        i) Human subject research which does not meet the criteria for expedited review or exemption from IRB review must be reviewed by the full committee at a convened meeting.

        ii) Until the FDA harmonizes their continuing review requirements with the Revised Common Rule, all non-exempt research under FDA jurisdiction will require annual (at a minimum) continuing review.

        iii) Research studies that previously met the criteria for expedited review will require full committee review if changes to the study are proposed which: (1) present more than minimal risk to human subjects or (2) involve procedures which do not meet the criteria for expedited review.

        iv) Greater than minimal risk studies which initially required full committee review will be reviewed by the convened board at continuing review unless:

            (1) the study meets the requirements for expedited review under federally defined HHS expedited review categories 8 or 9 [14 CFR 1230.109(f)(iii), 21 CFR 56.110]; or

            (2) The study is modified with the CR application such that the remaining study procedures meet the criteria for expedited review.

    Note: The NASA IRB may require continuing review for research on a case-by-case basis as it deems appropriate.

5. Unless the NASA IRB determines otherwise, continuing review of approved research for studies that meet the following criteria is NOT required:
    a) Research granted exemption, including exempt research requiring limited IRB review procedures [See SOP 420: Exempt review]
    b) Research that is not subject to FDA regulations and is eligible for expedited review in accordance with NASA 14 CFR 1230.110 and SOP 430: Expedited Review.
    c) Research that previously required review by the convened IRB, but has progressed to the point that involves only one or both of the following:
        i) Remaining study activities are limited to data analysis, including analysis of identifiable private information or identifiable bio-specimens (expedited category 8c; 14 CFR 1230.109(f)(iii)(A)) or
        ii) Remaining study activities are limited to long-term follow-up of participants where the research is accessing follow-up clinical data only from procedures the participants would undergo as part of routine clinical care (expedited category 8a; 14 CFR 1230.109(f)(iii)(B)).

Procedures

1. **Principal Investigators (PI)** request prospective IRB review and approval from the NASA IRB for renewal of approved research through the eIRB by submitting a continuing review application with sufficient time for review prior to the expiration of the current IRB approval.
    a) The eIRB prompts the PI for information regarding the status and progress of the research during the last approval period.
        i) Modifications to the protocol file may be submitted at the same time as the continuing review.

2. NASA IRB Office Responsibilities

a) **Screening/Pre-review**. Upon receipt of the submission in the eIRB the NASA IRB office staff screens the application for completeness and accuracy and ensures that the IRB criteria for approval continue to be fulfilled.

i) The submission may be returned to the PI for questions, clarifications, or updates. The NASA IRB Office may consult with senior staff, IRB Chairs, and members as needed, particularly with respect to assessments of risks and benefits.

ii) When pre-review is complete, the IRB office staff confirms within the eIRB:

(1) Regulatory Oversight (NASA indicates as “Other federal agency”)

(2) Need for any special determinations and waivers

(3) Type of research (e.g., biomedical, SBER)

(4) Additional study features

(a) Clinical Trial – meets either the Revised Common Rule and/or FDAAA clinical trial definition(s)

(b) Inclusion of a Certificate of Confidentiality (CoC)

(c) Collaborative – researchers from outside of NASA are engaged in HSR for the study

(d) Multi-site – involves the same research protocol completed at more than one location (site) (note: rare for NASA studies).

(5) Notes section:

(a) Pre-review summaries should begin with the modification number to facilitate recordkeeping

(b) Continuing Review pre-review should include a summary of enrollment, current risk level, any modifications, and proposed expedited category(s), if applicable

iii) The NASA IRB office either forwards the submission to the Designated Reviewer for expedited review or assigns the submission to the agenda for review by the fully convened IRB.

b) **Designated/Expedited Review.** Following the initial pre-review and completion of any necessary ancillary reviews, the NASA IRB Office forwards the submission to the Designated Reviewer for expedited review.

i) When feasible, and not conflicted, the NASA IRB member from the PI's home center (e.g., ARC, LaRC, JSC, KSC) or designee is assigned as the Designated Reviewer.

ii) Designated Reviewers who have a conflict of interest related to a submission must inform the NASA IRB office staff of the conflict. Review will be assigned to another IRB Member.

iii) The Designated Reviewer may ask the NASA IRB Chair/Designee or other qualified NASA IRB Member to assist with the review.

iv) Designated Reviewers have access to the materials submitted in the eIRB system including, but not limited to the full protocol, consent documents(s), recruitment materials, and data collection materials.

v) The Designated Reviewer confirms that the research continues to meet ethical principles and standards for protecting research subjects 14 CFR 1230.111.

vi) The Designated Reviewer may contact the PI for any clarification or non-directive requests needed via "Request for Clarification" within the eIRB.

vii) When satisfied, the Designated Reviewer submits the review through the eIRB system.

viii) The Designated Reviewer makes one of the following determinations:

(1) **Approved**. Accepted as is, no changes are required and criteria for approval continue to be met.

(2) **Modifications Required to Secure "Approved".** (i.e., Contingent Approval). Minor specific changes are required. The NASA IRB Chair/Designee notes the stipulated changes required for approval in the eIRB.

(a) Provided the completion of the stipulations can be checked 'complete' by the NASA IRB Office, the continuing reviews do not need to be reviewed by the NASA IRB Chair or designee.

(b) The NASA IRB chair or designee *may* request review of the stipulated modifications, in which case the NASA IRB office will forward to the NASA IRB Chair or designee for final approval.

(c) "Approval date" represents the date that the IRB made the decision to contingently approve the study, not the day the decision is recorded.

(d) "Effective date" is set to the day the modifications are reviewed and accepted by IRB staff.

(3) **Referred for Full Committee Review**. The Designated Reviewer may determine that the submission is not expedited and requires review by the convened IRB.

(a) The Designated Reviewer reserves the authority to refer any study to the convened IRB for review.

(b) Only the Full Committee may disapprove a study if the criteria for NASA IRB approval are not met.

3. **Full Board Review**. Following the initial pre-review, the NASA IRB Office assigns the submission for the agenda for review by the fully convened IRB.

a) At least one week prior to the convened IRB meeting, each NASA IRB member is provided with sufficient materials to conduct substantive and meaningful reviews.

i) Materials (accessible via the eIRB) include both the protocol and consent form, and the continuing review application.

ii) The convened board determines the IRB approval period that dictates when CR is required.

iii) To re-approve research at the time of CR, the NASA IRB must determine that all criteria set forth by NASA 14 CFR 1230.111 continue to be met.

b) The convened IRB makes one of the following determinations:

i) **Approved.** Accepted as is, no changes are required and criteria for approval continue to be met.

ii) **Modifications Required to Secure "Approved"**(i.e., Contingent Approval). Minor specific changes are required.

(1) Provided the completion of the stipulations can be checked 'complete' by the NASA IRB Office, the continuing reviews do not need to be reviewed by the NASA IRB Chair or designee.

(2) The NASA IRB chair or designee may request review of the stipulated modifications, in which case the NASA IRB office will forward to the NASA IRB Chair or designee for final approval.

(3) “Approval date” represents the date that the IRB made the decision to contingently approve the study, not the day the decision is recorded.

(4) “Effective date” is set to the day the modifications are reviewed and accepted by IRB staff.

iii) **Deferred/Tabled**. The IRB cannot approve the research at a meeting:

(1) For reasons unrelated to the research, such as loss of quorum; or

(2) The IRB is unable to approve the research because the applicable criteria for IRB approval have not (yet) been met.

iv) **Disapproved.** The IRB is unable to approve the research.

(1) the IRB is unable to approve the research because the applicable criteria for IRB approval have not been met.

(2) The IRB action to disapprove a study may not be overturned or reversed except by the IRB itself.

4. **Review Documentation** is recorded in the eIRB system.

a) The Designated Reviewer will document that the submission qualifies for Expedited Review and indicate the applicable expedited category(s) within the eIRB.

b) The NASA IRB records for continuing review by expedited procedures must include:

i) Documentation of the risk determination.

ii) the specific permissible Expedited Review Category(s), as applicable

iii) Period of approval, or that no continuing review is required

iv) Determinations required by the regulations including study-specific findings (if any).

c) The NASA IRB records for continuing review by the full board must include:

i) Documentation of the risk determination.

ii) Period of approval, or that no continuing review is required

iii) Determinations required by the regulations including study-specific findings.

iv) The NASA IRB Minutes will reflect major concerns or issues raised during the committee’s review and subsequent actions taken by the board, the motion and vote count, the final determination, and a list of submissions approved by expedited procedures.

5. **Post Review.** IRB staff prepares and distributes the appropriate letter to the PI/PI Proxy through the eIRB system, and when applicable, finalizes study materials within the eIRB.

a) Approval notification letters include the expiration date, when applicable.

6. NASA IRB communication with PI

a) Notification of continuing review

i) The eIRB sends out automated reminders at 90, 60, and 30 days before the expiration date of the protocol.

ii) The NASA IRB staff sends out courtesy reminder emails and comments in the eIRB prior to the protocol submission deadline for the next IRB meeting.

iii) The NASA IRB office communicates the determination regarding if a CR is required in the approval letter.

(1) If a CR is required, the NASA IRB approval letter contains the study's approval period and the IRB's expectation for submission of CR prior to the end of the approval period.

(2) For studies that had the CR requirement removed, the IRB approval letter confirms that CR is not required, the study will not expire, and that modification, reports of new information, and study closure submissions are still required by the PI.

7. Documentation

a) If CR is required. The rationale for requiring CR must be documented in the eIRB. The expiration date is documented in both the eIRB and the approval letter.

b) If CR is not required. The eIRB automatically reminds PIs on an annual basis that the study remains open and under NASA IRB oversight, and that the PI must continue to report all modification to the protocol file.

8. Lapses in Approval

a) If the NASA IRB approval for a study expires, all research activities involving human subjects must cease (see SOP – 450: Study Closure).

i) Research activities that must cease include participant enrollment, recruitment, informed consent, data collection, and analysis and sharing of identifiable data.

(1) The only exception to this requirement is for activities that are required for participant safety.

(2) *No new subjects may be enrolled.*

(3) In cases where research activities must continue for participant safety, the PI must provide written request for continuation and include the rationale for continuation to the NASA IRB. Continuation of study procedures is determined on a case-by-case basis for currently enrolled subjects.

(4) The NASA IRB office will notify the PI if it is permissible under federal guidelines to continue limited research activities.

Definitions

Full Committee Review: reviews conducted at convened meetings at which IRB membership requirements [14 CFR 1230.107] are met and a quorum consisting of a majority of the IRB members are present.

Minimal Risk [14 CFR 1230.102(j)]: the probability and magnitude of harm or discomfort anticipated in the research that are not greater in and of themselves than those ordinarily encountered in daily life or during the performance of routine or psychological examinations or tests.

FDA Regulated: The US Food and Drug Administration (FDA) regulates clinical studies conducted on drugs, biologics, devices, diagnostics, and in some cases dietary supplements and food additives. All such research studies must be conducted in accordance with FDA requirements for the protection of human subjects and IRBs, regardless of funding (21 CFR Parts 50 and 56).

References

NASA

- 14 CFR 1230
- NPR 7100.1

HHS Regulations

- OHRP Guidance on IRB Continuing Review of Research – November 10, 2010

FDA Regulations and Guidance

- FDA 21 CFR 50
- FDA 21 CFR 56

Bankert, E. G. (2022). *Institutional Review Board Management and Function 3rd Edition.* Burlington, MA: Joens & Bartlett Learning.

Version #	Version Notes:	Originated By:	Approved By:	Date Approved:
v.3	Clarifications to policy regarding when expedited review can be used. Substantive revisions to process details.	S. Asgar/ J. Green/ J. Ensley Gorshe	M. Covington	13Sep2023
v.2		J. Kisenwether	M. Covington	30Apr2021
v.1		J. Christensen	M. Covington	05Jul2020